The Karnataka Ground Water (Regulation and Control of Development and Management) Act, 2011

Act 25 of 2011

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KARNATAKA ACT NO 25 OF 2011

THE KARNATAKA GROUND WATER (REGULATION AND CONTROL OF DEVELOPMENT AND MANAGEMENT) ACT, 2011

Arrangement of Sections

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STATEMENT OF OBJECTS AND REASONS

Act 25 of 2011.- The Ministry of Water Resources, Government of India, had circulated a model Bill for regulation and control of development and management of ground water in the year 1992 and subsequently in the year 1996. In the meanwhile, the Government of Karnataka has enacted the Karnataka Ground Water (Regulation for protection of sources of drinking water) Act, 1999 (Karnataka Act 44 of 2003) to give priority for drinking water and for protection of drinking water sources in the State.

Now, it is considered necessary to bring a general legislation to control indiscriminatory exploitation of ground water especially in the notified areas in the State.

The proposed Bill also provides for,-

(i) the constitution of the Karnataka Ground Water Authority;

(ii) restriction and regulation of extraction of ground water in the notified area;

(iii) specification of the minimum distance between the bore wells dug for the purpose of irrigation;

(iv) declaration by notification any areas as draught hit areas;

(v) Certain other incidental provisions also.

Hence the Bill.

[L.A. Bill No. 10 of 2011, File No. Samvyashae 40 Shasana 2002]

[Entries 17, 18 and 32 of List II of the Seventh Schedule to the Constitution of India.]

KARNATAKA ACT NO 25 OF 2011

(First Published in the Karnataka Gazette Extra-ordinary on the seventh day of April, 2011)

THE KARNATAKA GROUND WATER (REGULATION AND CONTROL OF DEVELOPMENT AND MANAGEMENT) ACT, 2011

(Received the assent of the Governor on the Fifth day of April, 2011)

An Act to regulate and control the development and management of ground water and matters connected therewith or incidental thereto.

Whereas, it is expedient to provide for Regulation and control of development and management of ground water in the State and for matters connected therewith or incidental thereto.

Be it enacted by the Karnataka State Legislature in the sixty second year of the Republic of India as follows:

CHAPTER – I

PRELIMINARY

1. Short title, extent and commencement and application.- (1) This Act may be called the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011.

(2) It extends to the whole of the State of Karnataka.

(3) It shall come into force on such date as the State Government may, by notification, appoint and different dates may be appointed for different areas and for different provisions of the Act.

(4) The provisions of this Act shall be in addition to and not in derogation of the provisions of any other law for the time being in force relating to protection of public sources of drinking water.

2. Definitions.- In this Act, unless the context otherwise requires,-

(a) "Artificial recharge to Ground Water" means the process by which Ground Water reservoir is augmented at a rate exceeding that under natural conditions of replenishment;

(b) **"Authority"** means the Karnataka Groundwater Authority established under section 3;

(c) **"Contravention"** means defiance or violation of a rule, law or judicial order or a breach of a regulatory requirement or not fulfilling an obligation, promise or agreement;

(d) **"Digging/drilling"** means with all its grammatical variations and cognate expression in relation to a well includes digging, drilling or boring of new wells or in existing wells, deepening and modification (of radials and galleries) of existing wells for extraction of groundwater;

(e) **"Drilling Agency"** means a person or an agency or an organization or an institution engaged in the business of drilling or digging of well for exploration of water resources or extraction of water;

(f) **"Defunct well"** means open wells or bore wells that are no longer yielding water or not in use;

(g) **"Failed bore wells"** means a bore well yielding less than one liter per second (or 791 GPH) at the time of installation;

(h) **"Government"** means the State Government;

(i) **"Groundwater**" means the water, which exists below the ground surface in the zone of saturation and can be extracted through wells or any other means or emerges as springs and base flows in streams and rivers;

(j) **"Inferior quality work"** means the defects and faults occurred during the design stage that affect well maintenance;

(k) **"Local Authority"** means a City Municipal Corporation, Municipal Council, Town Panchayat, Zilla Panchayat, Taluk Panchayat, Grama Panchayat, Industrial Township Authority, Bangalore Development Authority, Improvement Board, Urban Development Authority, Planning Authority, Bangalore Water Supply and Sewerage Board, Karnataka Urban Water Supply and Sewerage Board, constituted under any law for the time being in force;

(l) **"Notified area"** means the area notified under section 10;

(m) **"Permit"** means a permit granted under section 11;

(n) **"Rain water harvesting"** is the technique of collection and use of rainwater at surface or in sub-surface aquifer;

(o) **"Registration"** means a certificate of registration granted under section 12 and section 13;

(p) **"User of groundwater"** means any person or group of persons or an institution including a company or an establishment, whether the Government or not who or which extract or use or sell groundwater for any purpose including domestic use made either on a personal or community basis;

(q) **"Well"** means a structure constructed for the search or extraction of groundwater by a person or persons for drinking/domestic/industrial/commercial/agriculture use except by the authorized officials of the State Government or the Central Government for carrying out scientific investigation, exploration, development, augmentation, conservation, protection or management of groundwater and shall include open well, bore well, dug cum bore well, tube well, filter point, collection well, infiltration gallery, recharge well, disposal well or any of their combinations or variations;

(r) **"Zone of saturation"** means a subsurface zone in which all the pores or the material are filled with ground water under phreatic condition.

CHAPTER –II

CONSTITUTION OF THE AUTHORITY

3. Establishment of Groundwater Authority.- (1) As soon as may be, after the commencement of this Act, the Government may by notification establish with effect from such date as may be specified in the notification, an authority to be known as the Karnataka Groundwater Authority for the whole of the State of Karnataka, with its head quarters at Bangalore.

(2) The authority shall be a body corporate by the name aforesaid having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property both movable and immovable and to enter into contract, and may by the said name sue and be sued.

(3) The Authority shall consist of the following members, namely:-

(a) The Secretary to Government in charge of the Department of Water resources, Minor Irrigation, Government of Karnataka who shall be the chairperson.

(b) The Commissioner or Director of Mines and Geology, who shall be the Member Secretary.

(c) A representative of the Finance Department, Government of Karnataka.

(d) The Regional Director, Central Groundwater Board, Government of India.

(e) One representative from the Electrical Supply Company having jurisdiction over the area, not below the rank of a Chief engineer.

(f) The Chief Engineer, RDED, Rural Development and Panchayat Raj Department.

(g) The Engineer-in-Chief, Water Resources Development Organization of Water Resources Department.

(h) The Chief Engineer, Minor Irrigation, nominated by the Government.

(i) The Chairman of the Karnataka State Pollution Control Board.

(j) The Commissioner/Director of Agriculture, Department of Agriculture.

(k) The Chief General Manager, National Bank for Agriculture and Rural Development, Bangalore.

(l) Four representative of farmers to be nominated by the Government.

(m) The Chief Engineer, the KUWS&DB.

(n) The Chief Engineer, the BWSSB.

(o) Two members who have special knowledge or practical experience in matters relating to groundwater to be nominated by the Government.

4. Disqualification for the members of the authority.- A person shall be disqualified for being nominated as, and for being a non-official member of the Authority if such member,-

(a) has been convicted and sentenced to imprisonment for an offence which, in the opinion of the Government involves moral turpitude; or

(b) is of unsound mind and is so declared by a competent court;

(c) is an un-discharged insolvent; or

(d) has been removed or dismissed from the service of the Central Government or the Government or a Corporation owned or controlled by the Central Government or the Government or from the membership of the Authority; or

(e) has directly or indirectly, by himself or his partner, any share or interest in any work done by the order of the Authority or in any contract or employment with, or under, or by, or on behalf of the Authority; or

(f) is employed as legal practitioner on behalf of the Authority or accepts employment as a legal practitioner against the Authority;

Provided that a person shall not be disqualified under clause (e) or be deemed to have any share or interest in any contract or employment within the meaning of the said clause by reason only of his having share or interest in a newspaper in which any advertisement relating to the affairs of the Authority is inserted.

5. Term of office and conditions of service.- (1) Subject to the pleasure of the Government and the provisions of section 6, non-official members nominated by the Government shall hold office for a period of three years from the date on which they assume office and shall be eligible for reappointment under such conditions as may be prescribed.

(2) A non-official member nominated by the Government, may at any time resign his office by writing under his hand addressed to the Government but shall continue in office till his resignation is accepted by the Government.

(3) The non-official member nominated by the Government shall be entitled to such allowances as may be prescribed.

6. Removal of a Member.- (1) The Government may remove a nominated non-official member, if such member,-

(a) becomes subject to any of the disqualifications specified in section 4; or

(b) refuses to act or becomes incapable of acting; or

(c) without obtaining the leave of absence from the Chairperson absents himself from three consecutive meetings of the Authority; or

(d) in the opinion of the Government, has so abused his position as to render his continuance detrimental to the interest of the Authority.

(2) No order of removal of a nominated non-official member under clause (a) and (d) of sub-section (1), shall be made unless such member has been given an opportunity of making his representation.

7. Casual vacancies etc.- (1) Any casual vacancy caused by resignation of a non-official member or otherwise may be filled by the Government, by nomination and the person so nominated shall hold office for the remaining period for which the member in whose place he is so nominated would have held office.

(2) No Act or proceedings of the Authority shall be invalidated merely by reason of any vacancy in its membership or any defect in the constitution or reconstitution of the Authority or any irregularity in the procedure of the Authority not affecting the merits of the case.

8. Meetings of the Authority.- (1) The Authority shall ordinarily meet at least once in three months at the office of the Authority or at such other place as the Chairperson may decide and shall, subject to the provisions of sub-sections (2), (3) and (4), observe such rules of procedure in regard to the transaction of business at its meeting as may be provided by regulations.

(2) The Chairperson or in his absence, any member chosen by the members present from among themselves, shall preside at a meeting of the Authority.

(3) If any member, being an officer of the Government is unable to attend any meeting of the Authority he may under intimation to the Chairperson, authorise his representative to attend meeting in writing, to do so.

(4) All questions at a meeting of the Authority shall be decided by a majority of the votes of the members present and voting and in the case of equality of votes, Chairperson or in his absence the member presiding shall have a casting vote.

(5) Quorum for a meeting shall be seven.

9. Staff of the Authority.- (1) The Government shall for the purpose of enabling the Authority to efficiently perform its functions or exercise its powers under the Act, provide such number of technical and other staff as it may consider necessary.

(2) The powers and duties, the method of recruitment and the terms and conditions of service of such employees shall be such, as may be prescribed.

(3) The Administrative expenses of the Authority including the salaries and allowances and pension payable to the officers and staff of the Authority, if any, shall be defrayed out of the fund of the Authority.

10. Power to notify areas to regulate and control the development and management of groundwater.- (1) The Authority shall function under the overall control and supervision of the Government.

(2) If the authority, after consultations with various expert bodies is of the opinion that it is necessary or expedient in the public interest to regulate the extraction or the use or both of Ground Water in any form in any area, it shall advise the Government to declare any such area to be a notified area for the purpose of this Act with effect from such date as may be specified therein.

(3) The Government on the advise of the Authority may, by notification in the Official Gazette, declare any such area to be a notified area for the purposes of this Act with effect from such date as may be specified therein:

Provided that the date so specified in the notification shall not be earlier than three months from the date of publication of the said notification.

(4) Every such notification shall in addition to its publication in the official Gazette, be published in not less than one daily regional language newspaper having wide circulation in the State and in such other manner as may be prescribed.

(5) If in the opinion of the authority, the availability of groundwater has improved in a notified area, it may, in consultation with various expert bodies advise Government to de-notify such area and the Government may do so according to the procedure prescribed.

(6) The authority shall also take steps to ensure that exploitation of Ground water resources does not exceed the natural replenishment to the aquifers.

(7) The Government on the advice of the authority may take steps as far as possible to ensure augmentation of ground water resources in addition to regulatory measures.

(8) The authority shall maintain and upkeep the data base on ground water related information.

11. Grant of permit to extract and use groundwater in the notified area.- (1) Subject to the provisions of any law relating to protection of public sources of drinking water, any user of ground water desiring to drill or dig a well in the notified area for any purpose either on personal or community basis shall apply to the authority for grant of permit for this purpose and shall not proceed with any activity connected with such drilling or digging unless a permit has been granted by the authority.

(2) Every application under sub-section (1) shall be made in such form, shall contain such particulars and in such manner accompanied by such fee for different purposes like industrial, commercial entertainment, agricultural and domestic etc., and for different areas, as may be prescribed.

(3) On receipt of an application under sub-section (1), if the Authority is satisfied that it shall not be against public interest to do so, it may grant subject to such conditions and restrictions as may be specified therein, a permit authorizing drilling or digging of a well for the extraction and use of groundwater. The conditions shall include mandatory provision of artificial recharge structures of appropriate size to be constructed by the applicant within a period as specified by the authority:

Provided that no person shall be refused of a permit unless he has been given an opportunity of being heard.

(4) The decision regarding grant or refusal of their permit shall be intimated by the Authority to the applicant within a period of sixty days from the date of receipt of the application.

(5) In granting or refusing a permit, the Authority shall have regard to the following, namely:-

(a) The purpose for which the groundwater is to be used-domestic, agriculture, industry, commercial, establishments entertainment,-indicate sale/own use or both;

(b) No permit shall be given for water intensive crops like paddy, sugarcane in notified areas;

(c) The existence of other competitive users;

(d) The availability of groundwater and the need to conserve it;

(e) Quantity of groundwater to be drawn;

(f) Quality of groundwater with reference to use;

(g) Spacing of groundwater structures keeping in consideration, the purpose for which the groundwater is to be used.

(h) Long term groundwater level behaviour;

(i) Its likelihood of adversely affecting water availability of any drinking water sources in its vicinity;

(j) Priority may be given for those who adopt sprinkler and drip irrigation system;

(k) Any other factors relevant thereto.

(6) The permit shall be subject to such terms and conditions and in such form as may be prescribed.

12. Registration of existing users in the notified areas.- (1) Every existing user of groundwater in the notified area shall within a period of one hundred twenty days from the date of declaration as notified area by the Government shall apply to the authority for grant of a certificate of a registration recognizing its existing use in such form and in such manner as may be prescribed:

Provided that the authority may entertain any such application after the expiry of the said period of one hundred and twenty days if it is satisfied that the user was prevented by sufficient cause from filing application in time.

(2) The details to be furnished in an application under sub-section (1) shall include the following, namely:-

(a) The description of the source of groundwater, such as type of well, its exact location;

(b) The lifting device used;

(c) The quantity of ground water withdrawal and hours of operation per day;

(d) The total period of use in each year;

(e) The purpose or purposes for which groundwater is being extracted;

(f) In case the requirement of ground water is for purpose of drinking water, the approximate population to be served;

(g) In case of irrigation well, the location and extent of area irrigated; and the crops grown;

(h) In the case of State and Central Government, Local authorities or Community run water supply schemes, the details of the services involved in addition to the quantities of ground water extracted, the diversion or the pumping points and their locations.

(3) On receipt of an application under sub-section (1), the Authority may, after such enquiry as it may deem fit and after satisfying itself, grant a registration certificate in such form, for such period and subject to such condition as may be prescribed.

(4) The decision regarding the grant or refusal of the certificate of registration shall be intimated by the authority to the applicant within a period of thirty days from the date of receipt of the application.

(5) In granting or refusing a certificate of registration under sub-section (3) the Authority shall have due regard to the following:-

(a) The purpose for which the groundwater is to be used;

(b) In case of applicants growing water intensive crops like paddy and sugarcane, an undertaking shall be obtained from them for change of heavy duty crops to light duty crops and such change to be incorporated in the certificate of registration.

(c) The existence of other competitive users;

(d) The availability of groundwater and the need to conserve it; quantity of groundwater to be drawn;

(e) Quality of groundwater with reference to use;

(f) Spacing of groundwater structures keeping in consideration, the purpose for which ground water is to be used;

(g) Long term groundwater level behaviour;

(h) Any other factors relevant thereto.

(6) The certificate of registration shall be in such form as may be prescribed.

(7) Pending the communication by the authority of the decision on the application under sub-section (1), every existing user of ground water in the notified area shall be entitled to the continued use of ground water in the same manner and to the same quantity as he was entitled prior to the date of his application.

(8) If a registered well becomes defunct this fact should be immediately brought to the notice of the authority by the user of groundwater and shall seal the defunct bore well in order to avoid untoward incidents.

13. Registration of drilling agencies.- (1) Every person desiring to carry on the business of drilling or digging well or extraction of groundwater shall register his machinery with authority in such manner as may be prescribed.

(2) No person by himself or through any person on his behalf shall, after expiry of a period of six months from the date of commencement of this Act carry on the business of drilling or digging well or extraction of groundwater except under and in accordance with the terms and conditions of the registration granted by the Authority under this Act.

(3) Every person for the purpose of getting a registration under sub-section (1) shall make an application to the Authority in such form, containing such particulars and accompanied by such fees as may be prescribed.

(4) On receipt of an application under sub-section (2), the Authority may after such enquiry as it may deem fit and after satisfying itself that the applicant has the means and knowledge to

undertake drilling or digging operations and extraction of ground water, grant a certificate of registration in such form for such period and subject to such conditions as may be prescribed.

14. Power to alter, amend or vary the terms of permit or certificate of registration.- At any time after the permit or certificate of registration as the case may be, has been granted, the Authority may, for technical reasons alter, amend or vary the terms of the permit or certificate of registration, as the case may be, provided the user of ground water has been given an opportunity of being heard:

Provided that before taking any such action the Authority shall ensure that standing crop or crops is not damaged.

15. Cancellation of permit or certificate of registration.- If the Authority is satisfied either on a reference made to it in this behalf or otherwise that,-

(a) the permit or certificate of registration has been obtained by fraud or mis-representation; or

(b) the holder of the permit or certificate of registration has without reasonable cause failed to comply with the conditions subject to which the permit or license and certificate of registration has been granted or has contravened any of the provisions of this Act or the rules made thereunder; or

(c) a situation has arisen which warrants limiting the use or extraction of groundwater;

(d) in case of drilling or drilling or digging agencies, who carries inferior quality of work either in drilling or installation of equipment including pipes and pumps;

it may, without prejudice to any other penalty to which the holder of the permit or certificate of registration may be liable under this Act or any other law the authority may after giving the holder of permit or certificate of registration an opportunity of being heard, cancel the permit or certificate of registration as the case may be.

16. Ineligibility to avail financial assistance, power connection etc.- A person, who does not possess a permit in notified area shall not be eligible,-

(a) to get any subsidy, grant or loan by the Government or any other agency, organization or financing institution to dig well and extract ground water;

(b) to get from the Electricity Supply Company or any other authority, the power connection and supply of electricity to extract water from a well without obtaining a permit;

(c) for any subsidies or incentives from the Government, who is a former and who does not adopt sprinkler or drip irrigation in the notified areas.

17. Powers of the Authority.- (1) The Authority or any person authorized by it in writing in this behalf shall have power,-

(a) to enter at any reasonable time on any property and to investigate and take any measurement concerning the land or water located on the surface or underground;

(b) to inspect the well which is being constructed or drilled or has been drilled and the soils and other materials excavated therefrom;

(c) to take the specimens of such soils or other materials or of water extracted from such well;

(d) to order in writing the person drilling or digging a well to keep and preserve in the prescribed manner specimen of soil or any material excavated therefrom for such period not exceeding three months from the date of completion or abandonment of the work as may be specified by the Authority and thereupon such person shall comply with such requisition;

(e) to inspect and to take copies of the relevant record or documents and to ask any question necessary for obtaining any information (including, diameter or depth of the well which is being or has been sunk, the level at which the water is or was struck and subsequently restored or rested the types of strata encountered in the drilling or digging of the well and quality of the water struck etc.,) required for carrying out the purposes of this Act;

(f) to serve or cause to be served a notice requiring any user of groundwater or drilling or digging agency to furnish such information or returns in such form, at such intervals and with such particulars, as may be prescribed and thereupon such user or drilling or digging agency shall comply with such requisition;

(g) to require the user of groundwater to install water measuring, devices if it is necessary to properly administer the water or there is reason to believe that the user of groundwater does not comply with the provisions of this Act or the rules made thereunder or for any other sufficient reason:

Provided that where the user of groundwater does not comply with the direction issued to him within a period of thirty days, from the date of issue of such requisition the Authority itself may install such water-measuring device and recover the cost from the defaulting user of groundwater;

(h) to seize any mechanical equipment or device utilized for illegal drilling or digging of well and extraction of groundwater and to demolish the work executed fully or partly;

(i) to direct any user of groundwater who does not comply with the provisions of this Act and the rules framed there under to close down the extraction of ground water, disconnect its power supply or confiscate any hydraulic work found to be illegal according to the provisions of this Act and the rules made thereunder:

Provided that where the user of groundwater does not comply with the direction issued to him within a period of sixty days, from the date of issue of such requisition the Authority itself may carry out the necessary work and recover the cost from the illegal user of groundwater;

(j) to enter and search at all reasonable times with such assistance, if any, as it considers necessary, any place in which it has reason to believe that offence under this Act has been or is being committed and to order in writing the person who has or is committing the offence not to extract or use the groundwater for a specified period not exceeding thirty days;

(k) to exercise such other powers as may be prescribed or as may be necessary for carrying out the purposes of this Act or any rules made thereunder.

(2) The power conferred by sub-section (1), includes the power to break open the door of any premises where drilling or digging or extraction and use of groundwater may be going on:

Provided that the power to break open the door shall be exercised only after the owner or any other person in occupation of the premises if he is present therein, refuse to open the door, on being called to do so.

(3) The provisions of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) shall, so far as may be, apply to any search or seizure under this section as they apply to any search or seizure made under the authority of a warrant issued under section 93 of the said Code.

(4) Where the Authority seizes any mechanical equipment or device under clause (h) of sub-section (1), it shall as soon as may be, inform the Magistrate having jurisdiction to try the offence in respect of such seizure and take his orders as to the custody thereof.

CHAPTER - III

FUNDS, ACCOUNTS AND AUDIT

18. Funds of the Authority.- (1) The Authority shall have and maintain a separate fund called the Karnataka Groundwater Authority Fund to which shall be credited,-

(a) such sums as may be placed at the disposal of the Authority from time to time by way of grant or loan or otherwise by the Government;

(b) grants and loans received from the Central Government;

(c) loans raised with prior concurrence of the Government by the Authority from the financial agencies;

(d) the proceeds of any fees, charges and fines levied;

(e) such other sums received by the Authority from any other source;

(2) All the new appointments in the establishment of the Authority, whether temporary or permanent with appropriate scale of pay and purchase of new vehicles shall be made with the concurrence of the Government;

(3) The Authority may impose appropriate charges on the quantum of ground water extracted for industrial, commercial and entertainment purposes with the approval of the Government in such manner as may be prescribed.

(4) The fund shall be applied for the purpose of this Act in such manner as may be prescribed.

(5) The fund shall be kept in such deposit and drawn in such manner as may be prescribed.

19. Budget of the Authority.- The Authority shall prepare in such form and at such time every year, as may be prescribed, a budget for the next financial year showing estimated receipts and expenditure of the Authority in respect of the administration of the Act and shall forward to the Government such number of copies thereof, as may be prescribed.

20. Accounts and Audit.- (1) The Authority shall maintain a true and proper account and other relevant records and prepare annual statements of accounts including the balance sheet in such form as may be prescribed.

(2) The accounts of the Authority shall be subject to audit annually by the Controller of State Accounts. A copy of annual statement of accounts together with a copy of the report of the auditor shall be forwarded annually to the Government.

21. Annual Report.- The authority shall prepare every year a report of its activities during the year and submit the report to the Government in such form and on or before such date as may be prescribed and the Government shall cause the same to be laid before each house of the State Legislature.

CHAPTER – IV

RAINWATER HARVESTING

22. Rainwater harvesting for ground water recharge.- (1) To improve the ground water situation, the Authority shall identify the recharge worthy areas in the State. The Authority in rural areas shall encourage through community participation the watershed management to facilitate ground water recharge.

(2) The Authority shall give appropriate directions to the concerned departments of the Government to include Rain Water Harvesting in all developmental schemes falling under notified areas.

(3) In urban areas, falling in notified areas, the Authority shall issue directives for constructing appropriate rain water harvesting structures in all residential, commercial and other premises having an area of 100 square meters or more in manner prescribed within the stipulated period.

(4) Notwithstanding anything contained in the relevant laws, the Municipal Corporation or any other local Authority as the case may be, may impose stipulated conditions for providing roof top rain water harvesting structures in the building plan in an area of 100 Square meters or more, while according approval for construction, and permanent water and electricity connections shall be extended only after compliance of the directions given in this regard.

(5) The Authority shall take steps for promotion of Mass Awareness and Training Programmes on Rain Water Harvesting and Artificial Recharge to Ground Water through Government Agencies/Non-Government Organizations (NGOs) Voluntary Organizations (VOs) / Educational Institutions/Industries/ Individuals.

(6) The Authority shall take steps to extend incentives/subsidies to the farmers who are following water conservation and rain water harvesting/recharge schemes.

CHAPTER – V

MISCELLANEOUS

23. Delegation of power and duties.- The Authority may, by general or special order and subject to such restrictions and conditions direct that all or any of the powers under this Act to be

exercised also by any of its officers and servants or such other officer specified in this behalf in such order.

24. Public to give information regarding contravention of the Act.- (1) Any person, who is aware of any contravention of the provisions of this Act, may in writing inform the same to the Authority.

(2) On receipt of such information, the Authority may on enquiry take action in respect of such contravention under this Act.

25. Recovery of dues as arrears of land revenue.- If any sum due to the Authority has not been paid within the time stipulated for such payment, it shall be recovered with interest at such rates as may be prescribed as arrears of land revenue.

26. Restriction on publication of information and returns.- Any user of groundwater may give notice in writing to the Authority to treat as confidential any specimen taken under clause (c) of sub-section (1) of section 17 or any other information or return furnished by him under clause (f) of sub-section (1) of that section and thereupon the Authority shall not allow that specimen or other information or return except in so far as it contains or affords information as to water resources and supplies and geological conditions to be published or shown to any person (not being an officer of the State Government) unless the person giving the notice consents thereto.

27. Service of orders.- (1) The service of every order under clause (d) of sub-section (1) of section 17 and every notice under clause (f) of sub-section (1) of that section on any person to whom it is by name addressed shall be effected,-

(a) by giving or tendering a copy of the said order or notice to such person; or

(b) if such person cannot be found, by affixing a copy of the order or notice to some conspicuous part of his last known abode or place of business or by delivering or tendering the order or notice to some adult male member or servant of his family, or by causing it to be affixed on some conspicuous part of the land or building in which the well is being drilled or dug.

(2) Where the person or whom an order or a notice is to be served is a minor, service upon his guardian in the manner provided in sub-section (1) shall be deemed to be service upon the minor.

28. Bar to claim compensation.- No person shall be entitled to claim any damages or compensation from the Government for any loss sustained by him by virtue of any action taken.

29. Members and employees of the authority to be public servants.- All members and employees of the Authority shall while acting or purporting to act in pursuance of the provisions of this Act or of any rules made thereunder be deemed to be public servants within the meaning of section 21 of the Indian Penal Code, 1860.

30. Protection of action taken in good faith.- No suit prosecution or other legal proceedings shall lie against the Government, Authority, Chairperson or other member of the Authority or any other officer of the Government or any officer or other employee of the Authority for

anything which is in good faith done or intended to be done in pursuance of this Act or any rule made thereunder.

31. Cognizance and trial of offences.- (1) No court shall take cognizance of an offence under this Act except on a complaint made with the previous sanction of the Authority by such officer as the Authority may authorize in this behalf.

(2) No court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try any offence under this Act.

32. Offences and penalties.- (1) Any person or drilling or digging agency who,-

(a) obstructs the Authority or any other person authorized by it to exercise any of the powers under this Act; or

(b) having been required to furnish any information or return under clause (f) of sub-section (1) of section 17:

(i) wilfully refuses or without lawful excuse, neglects to furnish such information or return; or

(ii) wilfully furnishes or causes to be furnished any information or return which he knows to be false;

shall be liable for punishment with fine which may extend to five thousand rupees and/or imprisonment for a term which may extend to six months or both. In the case of continuing and subsequent failure or contravention, an additional fine which may extend to one hundred rupees for every day during which such failure or contravention continues, shall be imposed.

(2) Any person who indulges in a drilling or digging well without permit from the authority shall be liable for punishment with fine which may extend to five thousand rupees or imprisonment for a term which may extend to six months or both. The authority or any other person authorized by it to exercise any of the powers under this Act may seize and confiscate the well and equipment of drilling or digging in such contravention, in favour of the Government in the manner as prescribed.

(3) If any person other than a drilling or digging agency who drills or digs well without permit or continues to extract water in notified area without registration and contravenes or fails to comply with any other provisions of this Act or any rule made thereunder or conditions of permit, except those mentioned in sub-section (1) and (2) above shall be liable for punishment with fine which may extend to two thousand rupees or imprisonment for a term which may extend to three months or both. In the case of subsequent and continuing failure or contravention of the authority or any other person authorized by it to exercise any other powers under this Act may seize and confiscate the well and equipment in such contravention, in favour of Government as prescribed.

(4) Any person or drilling or digging agency which contravenes or fails to comply with any other provision of this Act or any rule made thereunder or conditions of certificate of registration, except those mentioned in sub-section (1) above, shall be punishable with fine which may extend to ten thousand rupees or imprisonment for a term which may extend to one year. In case of

subsequent and continuing failure or contravention the authority or any other person authorized by it to exercise any of the powers under this Act may seize and confiscate the drilling or digging equipment and machinery in favour of Government in the manner as prescribed.

33. Compounding of offences.- (1) The Authority or any other officer of the Authority authorized by it by general or special order in this behalf may either before or after the institution of the proceedings compound such offences as may be prescribed by the Government by accepting from any person who has committed or in respect of whom a reasonable belief can be inferred that he has committed an offence punishable under this Act or the rules made thereunder, a sum as may be prescribed by way of composition of such offences.

(2) Where an offence has been compounded, the offender if in custody, shall be discharged and no further proceeding shall be taken against him in respect of the offence so compounded.

34. Offences by companies.- (1) If the person committing an offence under this Act is a company whether incorporated or not, the company as well as every person in charge of, and responsible to the company for the conduct of its business at the time of commission of the offence shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment under this Act if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of or that the commission of offence is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation: - For the purpose of this section,-

(a) “Company” means any body corporate and includes a firm or other Association of individuals; and

(b) “Director”, in relation to a firm means a partner in the firm.

35. Bar of jurisdiction by Civil Courts.- No Civil Court shall have jurisdiction to entertain or decide any suit or other proceedings in respect of any matter which the Government or the Authority is empowered by this act to determine and no injunction shall be granted by any court, in respect of any action taken or proposed to be taken by the Government or the Authority in exercise of the powers conferred by or under this Act.

36. Fines to be credited to the fund of the Authority.- All fines recovered under this Act by or under the order of a Court shall be paid to the credit of the Fund of the authority.

37. Punishment under other laws not barred.- Nothing in this Act shall prevent any person from being prosecuted and punished under any other law for the time being in force for any act or omission made punishable by or under this Act:

Provided that no person shall be prosecuted and punished for the same offence more than once.

38. Power to make rules.- (1) The State Government may, after previous publication, by notification, make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a) the term of office and manner of filling vacancies and other conditions of service of the non official members of the Authority;
(b) the powers and duties and the terms and conditions of service of the employees of the Authority;
(c) the manner of publication of notification under sub-section (3) of section 10;
(d) the form of application under section 11;
(e) the form of the permit under section 11;
(f) the form of application under sub-section (1) of section 12;
(g) the form of certificate of registration under sub-section (6) of section 12;
(h) the form of certificate of registration and fees application under sub-section (1) of section 13;
(i) the form of certificate of registration and fees under sub-section (3) of section 13;
(j) the manner in which the specimens of soils or other material shall be kept and preserved under section 17 (1) (c);
(k) the form in which, and the interval at which the information or return under clause (f) of sub-section (1) of section 17 shall be furnished and the particulars which such information or return shall contain;
(l) specifying the appellate authority under sub-section (1) of section 41 and the fees to accompany the application for appeal;
(m) any other matter which is required to be or may be prescribed.

(3) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if before the expiry of the session in which it is so laid or the sessions immediately following both Houses agree in making any rule or both Houses agree that the rule should not be made, the rule thereafter shall have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

39. Regulations.- The Authority may with the previous approval of the State Government, by notification, make regulations not inconsistent with the provisions of this Act and the rules made there under to carry out the purposes of this Act, in so far as it relates to the discharge of its functions under this Act.

40. Power to remove difficulties.- (1) If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by order published in the official Gazette make such provisions not inconsistent with the provisions of this Act as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of a period of two years from the date of commencement of this Act.

(2) Every order made under this section shall as soon as may be, after it is made be laid before each Houses of the State Legislature.

41. Appeals.- (1) Any person aggrieved by a decision or action of the Authority under this Act may within a period of sixty days from the date on which the action is taken or the decision is communicated to him and on payment of such fee as may be prescribed, prefer such an appeal to such an Authority as may be specified by the State Government in this behalf:

Provided that the appellate authority may entertain an appeal after the expiry of the said period of sixty days, if it is satisfied that the applicant was prevented by sufficient cause from filing the appeal in time.

(2) On receipt of an appeal under sub-section (1), the Appellate Authority shall after giving the applicant an opportunity of being heard, dispose of the appeal as expeditiously as possible.

The above translation of the ಕರ್ನಾಟಕ ಅಂರ್ತಜಲ (ಅಭಿವೃದ್ಧಿ ಮತ್ತು ನಿರ್ವಹಣೆಯ ವಿನಿಯಮನ ಹಾಗೂ ನಿಯಂತ್ರಣ) ಅಧಿನಿಯಮ, 2011 (2011ರ ಕರ್ನಾಟಕ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ: 25) be published in the Official Gazette under clause (3) of Article 348 of the Constitution of India.

H.R.BHARDWAJ
GOVERNOR OF KARNATAKA

By Order and in the name of the Governor of Karnataka

G.K. BOREGOWDA
Secretary to Government
Department of Parliamentary Affairs & Legislation

ಸರ್ಕಾರಿ ಮುದ್ರಣಾಲಯ, ವಿಕಾಸ ಸೌಧ ಘಟಕ, ಬೆಂಗಳೂರು. (ಪಿ3) (450 ಪ್ರತಿಗಳು)

PARLIAMENTARY AFFAIRS AND LEGISLATION SECRETARIAT
NOTIFICATION
NO.DPAL 61 SHASHANA 2024, BENGALURU, DATED:10.01.2025

ಭಾರತ ಸಂವಿಧಾನದ ಅನುಚ್ಛೇದ 348ರ ಖಂಡ (3)ರ ಅಡಿಯಲ್ಲಿ ರಾಜ್ಯಪಾಲರಿಂದ ಅಧಿಕೃತಗೊಳಿಸಿದ ಕರ್ನಾಟಕ ಅಂತರ್ಜಲ (ಅಭಿವೃದ್ಧಿ ಮತ್ತು ನಿರ್ವಹಣೆಯ ವಿನಿಯಮನ ಹಾಗೂ ನಿಯಂತ್ರಣ) (ತಿದ್ದುಪಡಿ) ಅಧಿನಿಯಮ, 2024 (2025ರ ಕರ್ನಾಟಕ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ: 10) ರ ಭಾಷಾಂತರವನ್ನು ಅಧಿಕೃತ ಆಂಗ್ಲ ಪಠ್ಯವೆಂದು ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರದ ವಿಶೇಷ ಸಂಚಿಕೆಯಲ್ಲಿ (ಭಾಗ IV) ಪ್ರಕಟಿಸಬೇಕೆಂದು ಆದೇಶಿಸಲಾಗಿದೆ,-

KARNATAKA ACT NO. 10 OF 2025

(First published in the Karnataka Gazette Extra-ordinary on the 10th day of January, 2025)

THE KARNATAKA GROUND WATER (REGULATION AND CONTROL OF DEVELOPMENT AND MANAGEMENT) (AMENDMENT) ACT, 2024

(Received the assent of the Governor on the 9th day of January, 2025)

An Act to amend the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011.

Whereas it is expedient to amend the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011 (Karnataka Act 25 of 2011) for the purposes hereinafter appearing;

Be it enacted by the Karnataka State Legislature in the seventy-fifth year of the Republic of India as follows:

1. Short title and commencement.-(1) This Act may be called the Karnataka Ground Water (Regulation and Control of Development and Management) (Amendment) Act, 2024.

(2) It shall come into force at once.

2. Amendment of section 2.- In the Karnataka Ground Water (Regulation and Control of Development and Management) Act, 2011 (hereinafter referred to as the principal Act) in section 2, after clause (j), the following shall be inserted, namely:-

"**(j-a) "Implementing Agency"** with all its grammatical variations and cognate expression in relation to a Government agency, public or private enterprise

that undertakes drilling bore-wells or tube wells, maintenance and supply of water either directly or through contractors;"

3. Amendment of section 11.- In section 11 of the principal Act, after sub-section (5), the following shall be inserted, namely:-

"(5A) On obtaining the permission from the Ground Water Authority or District Ground Water Committee, the land owner or implementing agency before digging a bore-well or tube well shall inform in writing at least fifteen days in advance to the officer of the local authority or urban local bodies as the case may be notified by the Government from time to time."

4. Insertion of new section 11A.- After section 11 of the principal Act, the following new section shall be inserted, namely:-

"11A. Measures to be taken by the land owner and implementing agency to extract and use ground water in the area other than notified area.- The Owner of the Land (Excluding Farmer) or Premises or implementing agency in the area other than notified area before digging the bore-well or tube well shall inform in writing at least fifteen days in advance to the officer of the local authority or urban local bodies as the case may be notified by the Government from time to time."

5. Amendment of section 12.- In section 12 of the principal Act, in sub-section (8), for the words, "in order to avoid untoward incidents" the words "or tube well as in such manner as may be prescribed" shall be substituted.

6. Insertion of New chapters IIIA and IIIB.- After section 21 of the Principal Act, the following new chapters shall be inserted, namely:-

"CHAPTER-IIIA
MEASURES TO PREVENT CHILDREN FALLING IN FAILED OR DEFUNCT ABANDONED OPEN BORE-WELL

21A. Duties of the Drilling Agency, Implementing Agency and Land Owner.- (1) Immediately after the completion of drilling the bore-well or tube well, the drilling agency or implementing agency, shall cap the bore-well or tube well

properly either by steel cap with bolts and nuts or with a threaded cap as a safety measure to prevent fatal accidents.

(2) In case of failed or abandoned or incomplete drilled bore-well or tube well to avoid caving and collapse, the same shall be filled with locally resourced stones and slurry and build a mound 2'x2' above the ground level. The mound shall be fenced with barbed wire or locally available thorny plants. Such filling shall not be with solid waste or chemical waste materials.

(3) The drilling agency and/or the implementing agency shall safely close failed or abandoned or incompletely drilled bore-well or tube well as stated in sub-section (2) within 24 hours and shall inform the concerned authorities immediately the action taken in this regard along with photographs of the closed bore-well or tube well and the concerned authority shall after inspection issue a certificate certifying the bore-well is properly closed.

(4) The drilling agency shall submit a declaration to the nearest Gram Panchayat or Village Administrative Officer in case of Rural Areas and Junior Engineer (Works), working under the respective Municipal Commissioner or Chief Officer of the Jurisdictional Urban Local Body as the case may be stating that, he has complied with requirements of above sub-sections (1), (2) and (3).

(5) In case of repairs immediately after the removal of submersible pump or suction pipe, the owner (excluding farmer) or servicing agency shall cap the bore-well or tube well properly either by steel cap with bolts and nuts or with a threaded cap as a safety measure to prevent fatal accidents.

(6) If the owner intends to rejuvenate inoperative or defunct bore-well or tube well, the owner of the land (excluding farmer) or premises shall have to safely close and cover such bore-well or tube well either by steel cap with bolts and nuts or with a threaded cap as a safety measure to avoid causalities.

21B. Fixing Signboards at the bore-well or tube-well site.- Drilling Agency shall erect signboards at the time of drilling, repairs, rejuvenation of the bore-well or tube well near the site displaying complete address of the Drilling Agency or Implementing Agency or Owner of the land or premises.

21C. Fencing the bore-wells or tube wells.- The Drilling Agency shall erect the barbed wire fencing or any other suitable barrier around the bore-well or tube well during the drilling, repairs, rejuvenation to avoid entry of unconnected persons or children.

CHAPTER- III B

DUTIES OF THE LOCAL AUTHORITIES

21D. Duties of the local authorities.- (1) The Panchayat Development Officer of Gram Panchayat, Village Administrative Officer, Junior Engineers or Officers of the respective urban local authorities and boards such as the Bangaluru Water Supply and Sewerage Board, Municipal Corporations and Municipalities including implementing Government Agencies, as the case may be shall keep vigil on the bore-wells or tube wells drilled and shall also ensure that the failed or abandoned or defunct bore-wells or tube wells are closed properly to avoid human causalities.

(2) The Panchayat Development Officer of Gram Panchayat, Village Administrative Officer, Junior Engineers or Commissioner or Chief Officers of the respective urban local authority shall maintain a register in respect of bore-wells or tube-wells as specified in proforma and submit a quarterly report to the Ground Water Authority or to any officer authorized in this behalf under section 21A.

(3) The officer in-charge of implementing agency of drinking water or irrigation or commercial schemes shall ensure that, the operating bore-wells or tube wells are covered safely.

(4) The Panchayat Development Officer of the concerned Gram Panchayat shall display in the premises of panchayat office a board in Kannada language regarding measures to be taken in respect of successful or failed or abandoned or defunct or incompletely drilled bore-well or tube well.

7. Amendment of section 32.- In section 32 of the Principal Act, for sub-section (4), the following shall be substituted, namely:-

"(4) Any person or drilling or digging agency which contravenes or fails to comply with conditions of certificate of registration, except those mentioned in sub-section (1), shall be punishable with fine which may extend to ten thousand rupees or imprisonment for a term which may extend to one year. In case of subsequent

and continuing failure or contravention the authority or any other person authorized by it to exercise any of the powers under this Act may seize and confiscate the drilling or digging equipment and machinery in the manner as may be prescribed."

8. Insertion of new section 32A.- After section 32 of the Principal Act, the following new section shall be inserted, namely:-

"**32A. Punishment and penalties.-** (1) If any person violates the provisions of section 11A shall be punished with simple imprisonment for a term which may extend to three months or with fine which may extend to five thousand rupees.

(2) If any person violates the provisions of section 21A shall be punished with simple imprisonment for a term which may extend to six months and with fine which may extend to ten thousand rupees.

(3) Failure on the part of drilling and servicing agencies to comply with the provisions of section 21A shall be punished with simple imprisonment for a term which may extend to one year and with fine which may extend to twenty five thousand rupees.

(4) If any drilling and servicing agency fails to comply with the duties under sections 21B and 21C shall be punished with simple imprisonment for a term which may extend to three months or with fine which may extend to five thousand rupees.

(5) Failure on the part of any authorities to perform the duties under section 21D shall be treated as misconduct and liable for disciplinary action."

9. Insertion of new section 33A.- After section 33 of the Principal Act, the following new section shall be inserted, namely:-

"33A. **cognizable offences.-** Notwithstanding anything contained in any other provisions of this Act, the offences specified in sub-section (1),(2),(3) and (4) of section 32A shall be cognizable offences."

10. Amendment of section 38.- In section 38 of the Principal Act, in sub-section (2), after clause (m), the following shall be inserted, namely:-

"(n) Maintaining registers and proformas under sections 11A and 26;

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(o) Duties of drilling agency, implementing agency and maintaining registers under section 21A;

(p) Size and fixing sign boards at the bore-well or tube well site under section 21B;

(q) Fencing the bore-wells or tube wells to avoid entry of unconnected persons and children under section 21C; and

(r) Issuing notifications to designate an officer for each local authority or urban local bodies or boards to inspect and supervise the defunct bore-well or tube well."

11. Power to remove difficulty.- (1) If any difficulty arises in giving effect to the Karnataka Ground water (Regulation and Control of Development and Management) (Amendment) Act, 2024 the State Government may, by notification in the Official Gazette, make such provisions as may appear to it to be necessary or expedient for purpose of removing the difficulty:

Provided that, no such order shall be made after the expiry of a period of two years from the date of commencement of the Karnataka Ground water (Regulation and Control of Development and Management) (Amendment) Act, 2024.

(2) Every order made under sub-section (1), shall as soon as after it is made, be laid before the State Legislature.

The above translation of ಕರ್ನಾಟಕ ಅಂತರ್ಜಲ (ಅಭಿವೃದ್ಧಿ ಮತ್ತು ನಿರ್ವಹಣೆಯ ವಿನಿಯಮನ ಹಾಗೂ ನಿಯಂತ್ರಣ) (ತಿದ್ದುಪಡಿ) ಅಧಿನಿಯಮ, 2024 (2025 ಕರ್ನಾಟಕ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ:10) be published in the official Gazette under clause (3) of Article 348 of the Constitution of India.

THAAWARCHAND GEHLOT
GOVERNMENT OF KARNATAKA

By Order and in the name of
the Governor of Karnataka,

G. SRIDHAR
Secretary to Government
Department of Parliamentary Affairs
and Legislation

ಮುದ್ರಕರು ಹಾಗೂ ಪ್ರಕಾಶಕರು:– ಸಂಕಲನಾಧಿಕಾರಿಗಳು, ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ, ಸರ್ಕಾರಿ ಕೇಂದ್ರ ಮುದ್ರಣಾಲಯ, ಬೆಂಗಳೂರು

THAMMAIAH

PARLIAMENTARY AFFAIRS AND LEGISLATION SECRETARIAT
NOTIFICATION
NO.DPAL 54 SHASHANA 2025, BENGALURU, DATED:12.09.2025

ಭಾರತ ಸಂವಿಧಾನದ ಅನುಚ್ಛೇದ 348ರ ಖಂಡ (3)ರ ಅಡಿಯಲ್ಲಿ ರಾಜ್ಯಪಾಲರಿಂದ ಅಧಿಕೃತಗೊಳಿಸಿದ ಕರ್ನಾಟಕ ಅಂತರ್ಜಲ (ಅಭಿವೃದ್ಧಿ ಮತ್ತು ನಿರ್ವಹಣೆಯ ವಿನಿಯಮನ ಹಾಗೂ ನಿಯಂತ್ರಣ) (ತಿದ್ದುಪಡಿ) ಅಧಿನಿಯಮ, 2025 (2025ರ ಕರ್ನಾಟಕ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ: 63)ರ ಭಾಷಾಂತರವನ್ನು ಅಧಿಕೃತ ಆಂಗ್ಲ ಪಠ್ಯವೆಂದು ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರದ ವಿಶೇಷ ಸಂಚಿಕೆಯಲ್ಲಿ (ಭಾಗ-IVA) ಪ್ರಕಟಿಸಬೇಕೆಂದು ಆದೇಶಿಸಲಾಗಿದೆ,-

KARNATAKA ACT NO. 63 OF 2025

(First published in the Karnataka Gazette Extra-ordinary on the 12th day of September, 2025)

THE KARNATAKA GROUND WATER (REGULATION AND CONTROL OF DEVELOPMENT AND MANAGEMENT) (AMENDMENT) ACT, 2025

(Received the assent of the Governor on the 11th day of September, 2025)

An Act further to amend the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011.

Whereas it is expedient further to amend the Karnataka Ground water (Regulation and Control of Development and Management) Act, 2011 (Karnataka Act 25 of 2011), for the purposes hereinafter appearing.

Be it enacted by the Karnataka State Legislature in the Seventy-sixth year of the Republic of India as follows:

1. Short title and commencement. (1) This Act may be called the Karnataka Ground Water (Regulation and Control of Development and Management) (Amendment) Act, 2025.

(2) It shall come into force at once.

2. Amendment of section 3. In the Karnataka Ground Water (Regulation and Control of Development and Management) Act, 2011 (Karnataka Act 25 of 2011) (hereinafter referred to as the principal Act), in section 3, in sub section (3),-

(i) for clause (a), the following shall be substituted, namely:-

"(a) The Secretary to Government incharge of the Minor Irrigation and Ground water development, Government of Karnataka who shall be the chair person."

(ii) for clause (b), the following shall be substituted, namely:-

“(b) The Director, Groundwater Directorate, who shall be the Member Secretary."

(iii) for clause (f), the following shall be substituted, namely:-

“(f) The Chief Engineer, Rural Drinking Water and Sanitation Department.”

(iv) for clause (h), the following shall be substituted, namely:-

"(h) The Chief Engineer of south zone, Minor Irrigation and Groundwater Development Department."

3. Amendment of section 11.- In the principal Act, in section 11,-

(i) for the heading, the following shall be substituted, namely:-

"11. Grant of permit to extract and use of Ground Water in Notified and Non-Notified Areas.",

(ii) for sub-section (1), the following shall be substituted, namely:-

"(1) Subject to the provisions of any other law for time being in force relating to the protection of public sources of drinking water, no ground water user, except those exempted under sub-section (1-A), shall drill or dig a well or extract, for any purpose in a notified and Non notified area without obtaining permit or No Objection Certificate from the Authority.

(1-A). Categories of consumers who are exempted from obtaining permission or No Objection Certificate. The following categories of consumers shall be exempted from Obtaining Permit for drilling new Borewell and seeking No Objection Certificate for ground water extraction namely:-

(i) Individual domestic consumers in both rural and urban areas for drinking water and domestic uses;
(ii) Rural drinking water supply schemes;
(iii) Armed Forces Establishments and Central Armed Police Forces establishments in both rural and urban areas;
(iv) Agricultural activities;
(v) All industries or mining projects or infrastructure projects drawing ground water only for drinking or domestic purposes up to 5 Cum per day in all assessment units, and
(vi) Residential apartments and group housing societies who drill or dig,-

(a) For drinking water and domestic uses, drawing ground water up to 20 m3 per day subject to the conditions specified in the guidelines; and
(b) Dwelling units for Economically Weaker Sections under the Government schemes.

(1-B) All private tankers abstracting ground water and use it for supply as bulk water suppliers shall have No Objection Certificate for ground water abstraction from the concerned authority as notified by the Government."

4. Amendment of section 17.- In the Principal Act, in section 17, in sub-section (1), after clause (j), the following new clauses shall be inserted, namely:-

"(j-1) to issue, adopt and notify the guidelines issued by central groundwater authority for regulating and controlling the ground water extraction with suitable modifications;

(j-2) to constitute the district committee or any committee for any area to implement the purpose of this Act; and

(j-3) to constitute a sub-committee consist of one or more members, experts from among themselves or outsiders to suggest or advice the authority in proper regulation or use of ground water or in any other matter."

5. Amendment of section 18.- In the Principal Act, in section 18, for sub-section (3), the following shall be substituted, namely:-

"(3) The authority may impose appropriate charges on the quantum of ground water extracted for the use of commercial, industrial, mining projects, infrastructure projects and bulk water supply as notified by the Government on the basis of guidelines issued by the Central Ground Water Authority."

6. Amendment of section 32.- In the Principal Act, in section 32,-

(i) in sub-section (1),for clause (b), the following shall be substituted, namely:-

"(b) having been required to furnish any information or return under clause (f) of sub-section (1) of section 17 of this Act,-

(i) Willfully refuses or without lawful excuse, neglects to furnish such information or return; or

(ii) Willfully furnishes or causes to be furnished any information or return which he knows to be false:

- Shall be liable for punishment with penalty which may extend to Fifty thousand rupees. In the case of continuing and subsequent failure or contravention, an additional Penalty which may extend to one thousand rupees for every day during which such failure or contravention continues, shall be imposed."

(ii) in sub-section (2), for the words "five thousand," the words "twenty five thousand", shall be substituted;

(iii) in sub-section (4), for the words "ten thousand", the words "twenty five thousand", shall be substituted; and

(iv) after sub-section (4), the following shall be inserted, namely:-

"(5) Any person extracts the water without obtaining valid No Objection Certificate and violates the provisions of this Act and said No Objection Certificate, punishable with penalty as notified by the Government on the basis of guidelines issued by the Central Ground Water Authority, with suitable modifications."

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The above translation of the ಕರ್ನಾಟಕ ಅಂತರ್ಜಲ (ಅಭಿವೃದ್ಧಿ ಮತ್ತು ನಿರ್ವಹಣೆಯ ವಿನಿಯಮನ ಹಾಗೂ ನಿಯಂತ್ರಣ) (ತಿದ್ದುಪಡಿ) ಅಧಿನಿಯಮ, 2025 (2025 ಕರ್ನಾಟಕ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ: 63) be published in the official Gazette under clause (3) of Article 348 of the Constitution of India.

THAAWARCHAND GEHLOT
GOVERNMENT OF KARNATAKA

By Order and in the name of
the Governor of Karnataka,

G. SRIDHAR
Secretary to Government
Department of Parliamentary Affairs
and Legislation

ಮುದ್ರಕರು ಹಾಗೂ ಪ್ರಕಾಶಕರು:– ಸಂಕಲನಾಧಿಕಾರಿಗಳು, ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ, ಸರ್ಕಾರಿ ಕೇಂದ್ರ ಮುದ್ರಣಾಲಯ, ಬೆಂಗಳೂರು

THAMMAIAH